Controlled Unclassified Information (CUI) Policy and Procedures

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Revision History: Rev 2 (2026-10-08): adds Government-customer CUI transmission and marking-placement rules per AFRL/RJPE guidance to Exos (Dr. M. Harvazinski, 2026-09-29): no CUI by email to the Government; DoD SAFE drop-off link requested from the Government; "CUI" centered in every header and footer of every page and slide; designation indicator block in the lower-right corner of the first page/slide. Rev 1 (2026-07-21): initial reference framework.
> **Adoption note:** This is a company reference framework. Before formal adoption it should be validated by Atomus (Exos's CMMC / managed-security authority) for alignment with our GCC High enclave and NIST SP 800-171 control implementation, and by Neil Milburn for the export-control (ITAR/EAR) integration in Sections 5 and 9. Nothing here overrides a specific contract's marking guidance, DD Form 254, or Security Classification Guide — those control when present.

1. Purpose

This document establishes Exos Aerospace's policies and procedures for identifying, marking, handling, storing, transmitting, and destroying Controlled Unclassified Information (CUI). Its purpose is to protect government and government-adjacent information entrusted to Exos, to meet our obligations under federal contracts, and to preserve Exos's eligibility for defense and civil space work.
CUI protection is both a compliance requirement and a business asset: a clean, demonstrable CUI program is a prerequisite for DoD contracting (CMMC), a differentiator in competitive pursuits, and a safeguard for our own export-controlled technical data.

2. Scope

This policy applies to:

- All Exos employees, officers, contractors, consultants, and temporary staff ("personnel").
- All CUI that Exos receives from, or generates on behalf of, a federal agency or prime contractor.
- All systems, devices, and physical locations where CUI is processed, stored, or transmitted, including the Exos Microsoft GCC High enclave managed with Atomus.
- All subcontractors and teaming partners to whom Exos flows down CUI.

This policy does **not** govern classified national security information (Exos does not hold classified information at this facility). Should a classified requirement arise, a separate DD Form 254 and DCSA-approved process would apply.

3. Authority and References

- **32 CFR Part 2002** — Controlled Unclassified Information (the CUI federal rule; ISOO/NARA).
- **NARA CUI Registry** — authoritative list of CUI categories and markings (archives.gov/cui).
- **NIST SP 800-171 (Rev. 3)** — Protecting CUI in Nonfederal Systems and Organizations.

- **NIST SP 800-172** — Enhanced security requirements (applied where a contract specifies).
- **DFARS 252.204-7012** — Safeguarding Covered Defense Information and Cyber Incident Reporting.
- **DFARS 252.204-7019 / -7020 / -7021** — NIST 800-171 assessment and CMMC requirements.
- **FAR 52.204-21** — Basic safeguarding of covered contractor information systems.
- **CMMC 2.0, Level 2** — Cybersecurity Maturity Model Certification (aligned to NIST 800-171).
- **ITAR (22 CFR 120-130)** and **EAR (15 CFR 730-774)** — export control of technical data.
- **DoDI 5200.48** — Controlled Unclassified Information (DoD implementation).

4. Definitions

- **CUI** — Unclassified information the Government creates or possesses, or that an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Government-wide policy requires or permits to be safeguarded. CUI status comes from a legal authority, not from a person's preference.
- **CUI Basic** — CUI with no specific handling controls beyond the baseline in 32 CFR 2002 and NIST 800-171.
- **CUI Specified (CUI//SP-xxxx)** — CUI whose authorizing law/regulation prescribes specific controls (e.g., Export Controlled, CTI).
- **CTI (Controlled Technical Information)** — technical information with military or space application, subject to controls on access, use, or distribution (DFARS 252.204-7012). Marked **CUI//SP-CTI**.
- **Covered Defense Information (CDI)** — the DFARS term for CUI (including CTI) on DoD contracts that triggers 7012 safeguarding and 72-hour incident reporting.
- **Designating Agency** — the federal agency that identifies information as CUI and sets its category, markings, and dissemination controls.
- **Authorized Holder** — an individual or entity permitted, under a lawful Government purpose, to access specific CUI.
- **Limited Dissemination Control (LDC)** — a marking (e.g., NOFORN, FED ONLY, NOCON) that further restricts who may receive the CUI.
- **Decontrol** — removing CUI status when the safeguarding requirement no longer applies.
- **Proprietary Information** — Exos's own trade-secret or business-sensitive information. This is **not** CUI unless and until it is generated for or provided to the Government under an authority that designates it as such. See Section 5.4.

5. CUI Categories Relevant to Exos

Exos will encounter a limited, predictable set of CUI categories. Personnel should recognize these:

Category	Marking	Typical Exos context
Export Controlled	CUI//SP-EXPT	ITAR/EAR technical data on the vehicle, propulsion, avionics, GNC
Controlled Technical Information	CUI//SP-CTI	Drawings, specs, test data delivered under a DFARS contract
Proprietary Business Information	CUI//SP-PROPIN	Third-party proprietary data received under a Government contract
Procurement & Acquisition	CUI//PROCURE	Source selection, proposal, and

		pre-award data on a Government solicitation
Controlled Unclassified Information (Basic)	CUI	General contract deliverables designated CUI without a specified authority

5.1 Export-controlled technical data is our dominant case

The large majority of CUI Exos handles is, or overlaps with, **export-controlled technical data** (ITAR/EAR). Any such information is treated as **CUI//SP-EXPT** and, absent a specific export authorization, is **not releasable to foreign persons** (including foreign-person employees, visitors, or foreign nationals abroad), regardless of any other CUI marking. Export authorization questions route to Neil Milburn before any release.

5.2 CUI vs. classified

None of the above is classified. CUI is never marked "Confidential," "Secret," or "FOUO." The legacy "FOUO" marking is retired; use CUI markings only.

5.3 We do not unilaterally invent CUI

Exos does **not** self-designate its own information as CUI. CUI status flows from a contract, a designating agency, or an incorporated Security Classification Guide / DD Form 254. When we generate information under a Government contract that carries CUI/CDI clauses, we mark it per that contract's guidance.

5.4 Marking our own trade secrets

For Exos-originated business or technical information that is **not** under a Government CUI obligation, mark it **"PROPRIETARY — Exos Aerospace"** (and, where applicable, "Export Controlled — ITAR/EAR"). Do not apply a CUI banner to purely internal proprietary material. When submitting proprietary material into a Government process, mark it Proprietary and acknowledge that the receiving agency may handle it as CUI//SP-PROPIN; do not attest to a CUI category on the Government's behalf.

6. Roles and Responsibilities

- **CEO (John Quinn)** — accountable owner; approves this policy and resourcing.
- **CUI Program Lead / ISSM** — maintains this policy, the CUI inventory, training records, and the System Security Plan (SSP); primary interface with Atomus.
- **Atomus (managed security / CMMC authority)** — implements and validates NIST 800-171 controls in the GCC High enclave; supports assessment readiness and incident response.
- **Export Control Officer (Neil Milburn)** — adjudicates ITAR/EAR release questions; co-owns Sections 5 and 9.
- **Contracts** — flags CUI/CDI clauses (DFARS 7012/7021, FAR 52.204-21) at proposal and award; ensures flowdown to subs.
- **Managers** — enforce need-to-know; confirm personnel are trained before granting CUI access.
- **All personnel** — recognize, mark, protect, and report CUI per this policy; complete annual training.

7. Designation and Marking

7.1 Banner and footer

Mark every page of a CUI document, and every slide of a CUI presentation, with "CUI" (or the fuller category marking) centered in the header and centered in the footer. No page or slide is exempt, including cover, title,

and back pages. For CUI Specified, use the category form, e.g. CUI//SP-EXPT or CUI//SP-CTI, unless the Government customer directs the plain "CUI" banner.

7.2 Designation indicator block

The first page of every Exos-generated CUI document, or the first slide of every CUI presentation, carries a designation indicator block placed in the LOWER-RIGHT CORNER of that page or slide. When the Government customer supplies its own designation block or contents, use theirs exactly. Default contents:

```
Controlled by:      Exos Aerospace Systems & Technologies, Inc.
Controlled by:      [Program / Contract No.]
CUI Category:       SP-EXPT / SP-CTI [as applicable]
Distribution/LDC:   [e.g., NOFORN, FED ONLY, or per contract]
POC:                [name, email, phone]
```

7.3 Portion marking

Portion marking is not required unless the contract specifies it. When used, mark portions "(CUI)" or "(U)".

7.4 Email

Do NOT transmit CUI by email, including encrypted email, to any Government customer. To deliver CUI to the Government, request a DoD SAFE drop-off link from the Government point of contact and upload the file through DoD SAFE (safe.apps.mil); the Government initiates the drop-off. Internally, and with authorized non-Government holders, share CUI only as SharePoint GCC High access links (SEC-CUI-STOR), never as email attachments or pasted content. An email may refer to CUI only by a non-sensitive title or link. CUI found in an email is a CUI incident (Section 10).

7.5 Digital files and media

Reflect CUI in the filename or file header where practical, and label removable media with a CUI cover/marking. Removable media use is disabled by default in the enclave and permitted only by exception.

8. Access Control and Need-to-Know

- CUI access is limited to **authorized holders with a lawful Government purpose and need-to-know**.
- Access requires: (a) completed CUI training, (b) for export-controlled data, U.S.-person status or a specific export authorization, and (c) manager approval.
- Access is enforced technically in the GCC High enclave (identity, MFA, least privilege, role-based access) as implemented with Atomus.
- Visitors, interns, and foreign persons receive **no** access to CUI or export-controlled data without prior, documented authorization.
- Maintain an access list per program; review on personnel or role changes and at least annually.

9. Handling, Storage, and Transmission

9.1 Systems (electronic)

- CUI is processed and stored **only** in the Exos Microsoft GCC High enclave (or another environment formally assessed to NIST 800-171 and authorized in writing).

- **No CUI on personal devices, personal email, consumer cloud (Dropbox, Google Drive, personal OneDrive), or unmanaged endpoints.**
- Data at rest is encrypted (FIPS-validated); endpoints are managed, patched, and MFA-protected.

9.2 Transmission

- **Email: not an approved channel for transmitting CUI (see 7.4). Never attach CUI to, or paste CUI into, any email, encrypted or not.**
- **File transfer to the Government: DoD SAFE via a drop-off link requested from the Government POC, or the agency portal the contract directs (e.g., PIEE). Other external transfers: SharePoint GCC High access links after export-control review.**
- **Do not** send CUI over consumer messaging, SMS, or unmanaged collaboration tools.
- **Export-controlled CUI** additionally requires an export determination before any transmission that could reach a foreign person or foreign destination (Neil Milburn).

9.3 Physical

- Store hardcopy CUI in a locked container/room when not in use; do not leave CUI unattended in the open.
- Cover sheet (SF 901 "CUI Cover Sheet" or equivalent) on printed CUI.
- Printing to shared devices requires secure/badge release; retrieve immediately.
- CUI does not leave the facility in hardcopy without manager and, if export-controlled, export-control approval.

9.4 Reproduction

Reproduce CUI only as needed for a lawful purpose; track copies of highly sensitive (CTI/EXPT) material by program.

10. Destruction and Disposal

- Destroy hardcopy CUI by cross-cut shredding (NSA/GSA-evaluated device where required) to make reconstruction infeasible.
- Sanitize electronic media per **NIST SP 800-88** before disposal or reuse.
- Do not place CUI in regular trash or recycling.
- Record destruction of CTI/EXPT material where a contract requires disposal certification.

11. Incident Response and Reporting

A CUI incident is any suspected or actual loss of control, unauthorized access, misdirected email, lost device, or compromise involving CUI.

Immediate steps (any employee):

1. Contain — do not forward or delete; preserve evidence.
2. Report to the CUI Program Lead / ISSM immediately (same business day).

Program Lead / ISSM + Atomus:

3. Assess scope and category (CDI? export-controlled?).
4. **DFARS 252.204-7012 cyber incidents** involving Covered Defense Information: report to DoD at **dibnet.dod.mil within 72 hours**, using the company's DoD-approved medium-assurance certificate. Preserve affected images/media for **90 days**.

5. Notify the contracting officer / prime as the contract requires.
6. **Export-controlled spillage** to a foreign person: notify Neil Milburn immediately; a voluntary disclosure to DDTC/BIS may be required.
7. Document the incident, remediation, and lessons learned in the incident register.

12. Training and Awareness

- All personnel complete and **pass Atomus-delivered CUI training** (Atomus delivers and tests) before receiving CUI access and **annually** thereafter. The passing result is the completion signal that triggers the onboarding Insider Threat Assessment.
- Export-control (ITAR/EAR) awareness training for personnel touching technical data (included in the Atomus curriculum).
- Role-based training for the ISSM, Contracts, and privileged IT users.
- Maintain training records for audit and CMMC assessment evidence.

13. Decontrol

- CUI is decontrolled only by the designating agency's authority or when a stated event/date is reached.
- Exos does not unilaterally decontrol Government CUI. When decontrol is authorized, line through or remove markings and annotate the decontrol authority and date.

14. Subcontractor and Partner Flowdown

- When Exos shares CUI with a subcontractor, teaming partner, or vendor, the applicable clauses (DFARS 252.204-7012 and, for DoD, -7021/CMMC) **flow down** in the subcontract.
- Confirm the recipient can protect CUI (enclave/assessment status) **before** transmitting.
- Share only the minimum CUI necessary; mark and log the transfer.
- Foreign-owned or foreign-person partners require an export determination before any technical-data sharing.

15. Compliance, Records, and Assessment

- The ISSM maintains the **System Security Plan (SSP)** and **Plan of Action & Milestones (POA&M)** for NIST 800-171, with Atomus.
- Maintain the **SPRS score** (DFARS 252.204-7019/-7020) and keep it current.
- Retain CUI inventory, access lists, training records, incident register, and destruction logs as assessment evidence.
- Support periodic self-assessment and CMMC Level 2 assessment readiness.
- This policy is reviewed annually and upon any material change to contracts, regulations, or the IT environment.

16. Enforcement

Failure to follow this policy may result in loss of CUI access, disciplinary action up to termination, and, where laws are violated (e.g., export control), civil or criminal referral. Protecting CUI is a condition of employment and of Exos's ability to do federal work.

Appendix A — CUI Marking Quick Reference

- Banner (header AND footer, centered, every page and every slide): CUI or CUI//SP-EXPT / CUI//SP-CTI
- Email: NEVER send CUI by email. To deliver to the Government, request a DoD SAFE drop-off link from the Government POC.
- **Never** use `FOUO`, `Confidential`, `SBU`, or `Secret` for CUI.
- **Exos-only proprietary (no Government obligation):** `PROPRIETARY — Exos Aerospace` (add `Export Controlled — ITAR/EAR` if applicable).
- Designation indicator block: lower-right corner of the first page/slide. Controlled by / Category / Distribution-LDC / POC (or the Government customer's block, exactly).

Appendix B — Where CUI May and May Not Live

Approved: DoD SAFE (Government-requested drop-off link) for delivery to the Government; Exos GCC High enclave (Atomus-managed) and SharePoint GCC High access links; agency portals the contract directs (PIEE); locked physical storage on site.
Prohibited: any email (personal or company, encrypted or not), personal or consumer cloud storage, personal phones/laptops, consumer messaging/SMS, unmanaged USB/removable media, home printers, and any commercial (non-GCC High) tenant not assessed for CUI.

Appendix C — Incident Quick Card

1. Contain (don't forward/delete). 2. Report to ISSM same day. 3. ISSM + Atomus assess. 4. If CDI: dibnet.dod.mil **within 72 hours**; preserve media 90 days. 5. Notify CO/prime. 6. Export spill → Neil Milburn (possible DDTC/BIS disclosure). 7. Document.

Appendix D — Acronyms

CDI Covered Defense Information · CMMC Cybersecurity Maturity Model Certification · CTI Controlled Technical Information · CUI Controlled Unclassified Information · DDTC Directorate of Defense Trade Controls · DFARS Defense Federal Acquisition Regulation Supplement · EAR Export Administration Regulations · GCC High Government Community Cloud High · ISSM Information System Security Manager · ITAR International Traffic in Arms Regulations · LDC Limited Dissemination Control · NARA National Archives and Records Administration · POA&M Plan of Action and Milestones · SPRS Supplier Performance Risk System · SSP System Security Plan

This document is a Company internal reference and does not supersede any specific contract, DD Form 254, Security Classification Guide, or written agency guidance, which control where they apply. Validate with Atomus and Export Control before formal adoption.